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Advocates

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Ref. No. .....

Date: 18 March 2026

LEGAL NOTICE

SPEED POST/REGISTERED POST/COURIER/EMAIL

CONFIDENTIAL

TO

IWC International Watch Co. AG *Legal Department / Corporate Legal Affairs* Baumgartenstrasse 15 CH-8201 Schaffhausen Switzerland	**Ethos Limited** *Legal Department / Customer Relations* 3rd Floor, Plot No. 266 Phase-IV, Udyog Vihar Gurugram – 122015 Haryana, India
Richemont Middle East FZE *Group Legal & Compliance Department* Dubai Airport Free Zone Building 4E Dubai United Arab Emirates	**Email**: info@iwc.com concierge.us@iwc.com customercare@ethoswatches.com dubai@richemont.com customer.service@richemont.com

RE: LEGAL NOTICE FOR SALE OF DEFECTIVE IWC WATCH, DEFICIENCY IN WARRANTY SERVICE, DEPRECIATION OF LUXURY ASSET AND REPEATED FAILURE SHORTLY AFTER REPAIR AND DEMAND FOR IMMEDIATE REPLACEMENT AND/OR REFUND

Dear Sir / Madam

1. We write to you for and on behalf of Mr. Pradeep Mehra, resident of Apartment 504A, Hamilton Court, Sector 28, Gurgaon, India(hereinafter referred to as "Our Client"). Our Client has placed in our hands relevant documents and papers pertaining to the said subject matter of the present Legal notice and has also briefed and instructed us in respect thereof. Based on the perusal/examination of the said relevant documents of Our Client and instruction thereof we say as follows:
2. Our Client is a frequent user of fine watches and takes pride in maintaining a modest and carefully curated collection of premium timepieces, that require meticulous workmanship and absolute punctuality.

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3. Accordingly, when the time came for Our Client to acquire another masterpiece timepiece, both as a personal milestone and as a symbol to commemorate a significant achievement in his life, he began carefully exploring the various options available in the market. In doing so, Our Client visited the trusted establishment of Ethos Watches, a retailer known for dealing in prestigious luxury watch brands.

4. Our Client already has another IWC watch, a Portugueser and wanted to add another to his collection, an IWC Pilot's chronometer. He was presented with several options and was specifically represented and assured that this particular timepiece from IWC Schaffhausen embodied the trust, craftsmanship, and legacy associated with the brand, and that it would stand as a true masterpiece among the available selections. Placing his faith in these representations and relying upon the reputation of both the retailer and the brand, Our Client proceeded to purchase the said timepiece.

5. The purchase was therefore not merely a commercial transaction but a deeply personal decision made in good faith, intended to commemorate a moment of great personal accomplishment and significance for Our Client.

6. Luxury Swiss watches such as those manufactured by IWC Schaffhausen are globally regarded not merely as consumer products but as precision engineered mechanical instruments and collectible assets, expected to deliver reliability, durability and craftsmanship over decades. IWC Schaffhausen itself promotes its heritage through the historic motto "***Probus Scafusia***" *meaning "good, solid craftsmanship from Schaffhausen."* Consumers worldwide purchase IWC watches relying on this representation of engineering excellence, precision manufacturing and uncompromising quality. It was precisely this reputation for craftsmanship and engineering reliability that Our Client relied upon when purchasing the watch in question.

7. India has emerged as one of the fastest growing markets globally for Swiss luxury watch brands. Industry reports estimate that the Indian luxury watch market was valued at approximately USD 3.36 billion in 2023 and is projected to reach approximately USD 4.67 billion by 2030. Swiss watch exports to India have also grown by over 25% year-on-year, demonstrating the growing importance of Indian consumers to Swiss luxury watch manufacturers. This growth reflects the strong economic and diplomatic relationship between India and Switzerland, particularly in sectors involving high-precision engineering and luxury manufacturing. Recognising the importance of the Indian market, IWC has actively promoted its presence in India through brand campaigns and celebrity representation. Such representation naturally creates a high degree of trust among Indian consumers, including Our Client.

8. On 17 July 2025, relying on the reputation and craftsmanship associated with the IWC Schaffhausen brand, Our Client purchased the subject wristwatch from Ethos Limited, Ambience Mall, Gurgaon for a total consideration of:

    a. ₹5,60,000 (approximately USD 6,700).

    b. The watch was supplied with a valid International Warranty, and the warranty card was duly stamped by the authorized dealer.

    c. The details of the watch are as follows:

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i. Serial Number: 7365196
ii. Reference Number: IW388101
iii. Purchase Price: ₹5,60,000 (USD ~6,700)
iv. Invoice No.: SIEGAM-2526-1054
v. Date: 17 July 2025

9. At the time of purchase, Our Client reasonably believed that he was acquiring a premium Swiss mechanical timepiece engineered and crafted to perform reliably for many decades, consistent with the global reputation and heritage of IWC Schaffhausen, and based on his experience of the IWC watch already in his possession. Our Client viewed the said timepiece not merely as a luxury purchase but as an enduring heirloom, one that he hoped would one day be passed on to his grandchildren, symbolising legacy, trust, and the values of excellence and faith that he aspired to inspire in the next generation.

10. To his shock and disappointment, within a short period of purchase, the watch began experiencing significant performance issues, it would stop functioning suddenly.

11. The watch was accordingly submitted through the authorised service channel on 14 January 2026 for inspection and technical diagnosis. Upon examination, representatives of IWC Schaffhausen acknowledged and accepted that the power reserve being achieved by the watch was approximately 26 hours, whereas the expected performance specification for the model is approximately 46 hours. This admission unequivocally establishes that the timepiece failed to meet the manufacturer's own technical performance standards. Such a substantial deviation cannot be regarded as minor or incidental, but instead clearly indicates the presence of a defect in the movement mechanism. For Our Client, who had purchased the watch with great pride and expectation of enduring precision and reliability, this discovery has been both deeply disappointing and distressing.

12. Most alarmingly and to Our Client's extreme dismay, the watch has now broken down again on Sunday, 15 March 2026, merely days after its return on 9 March 2026 following the prolonged 54-day repair. This repeated and immediate failure confirms beyond doubt that the timepiece suffers from an inherent manufacturing defect in the movement or related components, rather than any user-related issue or normal wear. Our Client is extremely disheartened, deeply disappointed, and profoundly distressed by this second breakdown, which has shattered any remaining confidence in the product's reliability and in the brand's quality assurance processes. The recurrence has compounded the original ordeal, turning what was already a frustrating experience into an utterly unacceptable pattern of repeated deficiency in service and product failure.

13. The recurrence of the defect immediately after servicing and return on 9 March 2026 has further aggravated Our Client's disappointment, frustration, and sense of having been misled. It is, therefore, both shocking and wholly unacceptable that Our Client has been subjected to such a grave deficiency in service and harassment. The experience endured by Our Client cannot be dismissed as a mere inconvenience or routine service issue; rather, it has caused significant distress and disappointment. What should have remained a moment of pride and personal celebration has

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instead been overshadowed by an avoidable and deeply frustrating ordeal, amounting to a serious setback for Our Client.

14. A Luxury watch demonstrating such severe performance deviation within weeks of purchase raises a presumption of inherent manufacturing defect rather than normal wear or user-related issues. The subsequent breakdown on 15 March 2026 further reinforces the fundamental manufacturing defect and failure of quality control.

15. The premature failure of a high-precision Swiss watch within months of purchase raises serious concerns regarding manufacturing integrity, quality control procedures, and product reliability. Such failure amounts to the supply of a defective product under applicable consumer protection and product liability applicable laws.

16. Despite the watch being newly purchased and covered under warranty, the watch remained with the service center from 14 January 2026 until 9 March 2026, amounting to approximately 54 days. At one stage, IWC Schaffhausen representatives informed Our Client that the repair process could take more than 90 days.

17. The repeated failure has further exacerbated the depreciation of the watch's value as a collectible asset, as it now carries the stigma of not one but multiple major service interventions within months of purchase. Our Client has therefore suffered even greater financial loss, compounded emotional anguish, and total loss of faith in the timepiece's ability to function as represented.

18. Our Client also made three separate attempts to contact the IWC concierge in Dubai for follow-up assistance. Regrettably, and to Our Client's considerable disappointment, these efforts were met with complete silence, without even the courtesy of an acknowledgment or response. This lack of engagement not only caused further distress to Our Client but also calls into serious question the efficacy and purpose of maintaining a concierge service for IWC Clients.

19. It is notable that the watch was ultimately returned only after Our Client escalated the matter directly to IWC headquarters in Switzerland, demonstrating that the issue was not being handled with the urgency expected from a luxury brand. Shockingly, within days of its return from service on 9 March 2026, the said watch has once again failed and broken down on Sunday, 15 March 2026. Our Client has already informed the concerned representatives of this development. This repeated failure, immediately after repair, conclusively establishes that the defect is not incidental or minor but is inherent, persistent, and unresolved despite intervention by authorized service channels.

20. Our Client has therefore suffered financial depreciation and loss of value directly caused by the defect in the product supplied. The repeated mechanical failures, including the most recent breakdown on14 January 2026 and 15 March 2026, coupled with the prolonged repair, have completely eroded Our Client's confidence in the reliability and integrity of the watch. A consumer purchasing a luxury Swiss watch at this price point does so with the anticipation that the watch will deliver years of dependable performance without requiring immediate servicing on multiple occasions.

21. Further, the watch remained unavailable for use for nearly two months and, upon its return, has again become unusable due to the breakdown on 15 March 2026, thereby depriving Our Client of

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the very purpose for which it was purchased. As is well understood, the greatest enjoyment and pride associated with acquiring a distinguished timepiece is ordinarily experienced in the initial period following its purchase, when it is worn with satisfaction and shared with close family, friends, and respected professional circles.

22. Among collectors and enthusiasts, a watch that has undergone multiple internal servicing shortly after purchase is no longer regarded as being in original manufactured condition, thereby materially affecting both resale value and collectability.

23. To have been denied this opportunity at the very outset, particularly in circumstances where Our Client had intended to present and wear the timepiece with pride among his esteemed circle and personal acquaintances, has been deeply disappointing and emotionally distressing. What should have been a moment of celebration and pride has instead been overshadowed by frustration and embarrassment, rendering the experience profoundly disheartening for Our Client.

24. Our Client had specifically intended to wear the watch at important celebratory and personal occasions, but due to the initial defect, prolonged repair, and now this immediate recurrence, he has been repeatedly denied this opportunity, not once, but multiple times in quick succession. Paying ₹5,60,000 (USD ~6,700) for a luxury watch and then being deprived of its use again so soon defeats the very essence and purpose of such a purchase, causing immense frustration, embarrassment, and emotional turmoil.

25. In the event that this matter is not resolved promptly, Our Client has clear instructions to initiate appropriate proceedings before the competent courts including but not limited to Consumer Disputes Redressal Commission under the Consumer Protection Act, 2019 for reliefs including replacement, refund, compensation, punitive damages, and litigation costs.

26. In light of the repeated failure of the watch even after repair, the defect must be treated as irreparable and the product as inherently defective, entitling Our Client to either a replacement watch of the same make and model, or a full refund as a matter of right under applicable law. You are therefore called upon to, within 15 (fifteen) calendar days from receipt of this notice but in no event later than close of business on **08 April 2026**:

    a. Either replace the watch with a new one of exactly the same make and model, or reimburse the full purchase value of the watch of ₹5,60,000 (USD ~6,700). In addition, Our Client claims compensation as follows:

        i. Depreciation and loss of asset value: ₹3,00,000 (USD ~3,600)

        ii. Loss of use and opportunity: ₹2,00,000 (USD ~2,400)

        iii. Mental harassment, grievance and distress: ₹3,00,000 (USD ~3,600)

        iv. Legal costs: ₹1,50,000 (USD ~1,800)

        v. Total claim excluding interest: ₹15,10,000 (approximately USD 18,100) plus interest @18% per annum from 14 January 2026 until payment.

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27. Our Client is now even more distressed, the repeated breakdown has significantly aggravated the loss of value, loss of confidence, and mental distress suffered by Our Client, and the claims set out herein stand further reinforced and justified.

28. The repeated breakdown and the most recent 15 March 2026 breakdown of the watch, has intensified the mental stress, anxiety, and emotional anguish to an unbearable level. Our Client's disciplined routine, sleep, and overall peace of mind have been severely disrupted once again by this preventable and recurring nightmare. The ongoing uncertainty, repeated follow-ups, and loss of a cherished symbol of achievement have caused profound and lasting disappointment.

29. As You (the recipients of this Legal Notice) are fully aware and accept, the circumstances surrounding the defective timepiece and the prolonged uncertainty regarding its condition caused Our Client significant distress, to the extent that he was unable to properly enjoy the peace and stability of his personal and retired life. The constant tension and worry regarding the delayed return and usability of the watch disturbed his otherwise disciplined and consistent daily routine, and even affected his sleep.

30. Throughout this period, Our Client remained deeply anxious about the fate of the watch and the possibility that, even upon its return, it would carry the stigma of a defect in what was intended to be a flawless masterpiece. The persistent inconvenience of having to repeatedly address and follow up on this matter, often at the cost of diverting time and attention away from his personal schedule, combined with the continuing uncertainty and lack of clarity surrounding the issue, has imposed a significant burden upon Our Client. Our Client has endured considerable mental stress, unwarranted harassment, and deep emotional anguish, arising from a situation that should never have occurred in the first place.

31. It is only natural and reasonable that a person who discovers that a prized and cherished timepiece, purchased as a symbol of personal achievement and legacy, suffers from a defect would experience genuine mental and psychological disturbance. For Our Client, the matter did not pass as a fleeting concern; rather, it remained a recurring source of distress, with each passing day serving as a reminder of the disappointment and loss associated with the experience. The plight of Our Client in these circumstances, and the emotional toll that this ordeal has taken upon him, cannot and ought not to be overlooked.

32. The failure of IWC Schaffhausen to ensure that the luxury wristwatch supplied to Our Client was free from defects set in motion a deeply unfortunate and distressing chain of events. What ought to have been a seamless and gratifying experience associated with the acquisition of a distinguished timepiece instead transformed into a prolonged and troubling ordeal. This situation has disrupted the sense of peace and satisfaction that Our Client had carefully built over many years through diligence, hard work, and personal achievement, turning what should have been a moment of pride and celebration into an experience marked by disappointment and distress.

33. Our Client would be happy to discuss and negotiate alternative remedies and resolution in good faith to the above in case IWC Schaffhausen is open minded to come and arrive to a conclusion that is acceptable to all parties. Our Client sincerely hopes that this matter can be resolved privately and

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amicably without the need for formal proceedings that might draw unnecessary attention to the issue.

34. Our Client trusted the engineering excellence and heritage of IWC Schaffhausen. It is therefore sincerely hoped that the brand will uphold the standards it publicly represents and resolve this matter in a manner consistent with its global reputation.

35. Consequently, Our Client hereby requests a good faith response to this Legal Notice within 15 calendar days, but in no event later than close of business on **08 April 2026**. If by such time Our Client does not receive a response from You (the recipients of this Legal Notice), please understand that you the addressees are in full agreement with Our Client and accept the same.

36. In case you wish to communicate, meet and discuss the compensation parameters and full settlement and release of the above with Our Client, you are requested send an email to **business@tuskh.com.**

37. Of course all of our settlement discussions and proposed negotiations are and would be privileged and entirely without prejudice and will not be referred to in any litigation between the parties. There will be no agreement between the parties until the agreement has actually been signed, acknowledged and delivered by and to both the parties.

38. Our Client reserves the right to pursue any and all available legal and equitable remedies, including, but not limited to, instituting formal litigation proceedings civil or criminal, against the same and this letter is without any prejudice to the rights of Our Client to initiate appropriate proceedings for any other defaults, under the international conventions, applicable laws, breaches and violations as well as any other rights or remedies available. Our Client also informs you that nothing contained in this Legal Notice or otherwise shall be deemed to have waived or modified any of their rights or remedies or otherwise other than as set forth herein and they hereby expressly reserve all such rights and remedies.

39. A Copy of this legal notice has been retained in our office for record and You the addressee is also advised to keep this original intact for Your future reference.

40. You are further liable to pay a sum of USD 1,000/- (United States Dollars One Thousand only) towards the costs incurred in issuing the present legal notice. Our Client made multiple bona fide attempts to resolve the matter amicably through communications with IWC Schaffhausen and its concierge; however, these efforts were entirely disregarded, without even the courtesy of a response. In the circumstances, Our Client has been left with no alternative but to pursue appropriate legal recourse.

Sincerely Yours

Nitin Walia
Partner
Tuskh Law & Associates

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